
Appeal Decision

Site visit made on 26 August 2026

by J Bell-Williamson MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6010525

Meadow Cottage, Brook Hill, Brook, Albury, Surrey GU5 9DJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Jack Nethercott (Prime Oak) against the decision of Guildford Borough Council.
 - The application Ref is 26/P/00345.
 - The development proposed is erection of detached oak framed garage/carport.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. This has introduced significant changes to its structure and presentation, including the incorporation of development management policies. However, having carefully considered the new Framework, I am satisfied that, insofar as the issues determinative to this case are concerned, the relevant policy approach has not fundamentally changed, and my consideration of it would not cause procedural unfairness or prejudice to parties. Therefore, the parties have not been invited to make further comments.

Main Issues

3. The main issues are:
 - whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies;
 - the effect of the proposal on the openness of the Green Belt; and
 - whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether the proposal would be inappropriate development

4. The appeal site lies within the Green Belt identified on the Council's Policies Map. Policy P2 of the Guildford Borough Local Plan: Strategy and Sites 2015-2034 (2019) says that the Green Belt will be protected against inappropriate development in accordance with the Framework.
5. Policy GB7 of the Framework lists the types of development that are not inappropriate in the Green Belt. This includes the extension of an existing building provided that it meets certain criteria, including that it will not result in a disproportionate increase in size compared to the original building¹.
6. In applying this national Green Belt policy, the High Court has ruled that an extension to a property does not necessarily need to be connected to the building to which it is an addition. Whether a proposal amounts to an extension is a matter of judgment for the decision maker based on the specific circumstances before them. It could include an outbuilding that is used ancillary to the main dwelling, and the Council assesses the proposal on this basis. No case is made that the proposed development would not be inappropriate in the Green Belt for any other reason.
7. The undisputed changes in floorspace provided by the Council are that the original building amounted to 103m², the existing floorspace due to other extensions is 145m²; and taking account of the proposed carport the overall size of the building would be 178.5m². This amounts to an increase in size from the original building of just over 73%, which is a significant degree of change by this measure. The proposed carport would be around 3.9m high.
8. The Framework does not employ a mathematical calculation for determining whether an addition would be disproportionate. However, when viewed cumulatively alongside previous extensions, due to the increase in floorspace in a separate building of significant height, the appeal scheme would result in a disproportionate increase in size compared to the original building.
9. Consequently, the proposal would not fall within the exception in the Framework and would therefore be inappropriate development in the Green Belt.

Effect on openness

10. The Framework states that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. Openness is the counterpart of urban sprawl and often connotes the absence of development. It can have both spatial and visual dimensions.
11. The proposed carport would be a lightweight timber structure, open on one side. Nevertheless, the introduction of a permanent building would inevitably lead to a loss of spatial openness.
12. The new structure would be sited on hardsurfacing between two existing buildings in an established residential curtilage, avoiding sprawl into the open countryside. The carport would not be readily visible from the public realm, and some tree cover would screen it in certain views. However, the largely open surrounding area to the east and south means that the new building would be visible from neighbouring

¹ Policy GB7, 1b.

land, causing some harm to visual openness. As such, there would be a demonstrable loss of openness, in both spatial and visual terms.

Other considerations

13. The Council did not find harm or development plan conflict in relation to several other matters, including character and appearance, impacts on landscape and designated heritage assets, living conditions and carbon reduction. However, even if I were to agree with the Council on these points, the absence of harm would be a neutral matter which would not carry weight in favour of the proposed scheme. No other considerations are put forward in support of the proposal.

Whether there would be Very Special Circumstances

14. Policy P2 of the Local Plan states that inappropriate development will not be permitted unless very special circumstances can be demonstrated. Very special circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness, and any other harm is clearly outweighed by other considerations. This approach broadly aligns with that set out in Policy GB6 of the Framework which indicates that substantial weight should be given to the harm caused to the Green Belt.

15. There are no other considerations raised in support of the proposal that would clearly outweigh the harm to the Green Belt by reason of inappropriateness and the effect on openness. Therefore, the very special circumstances necessary to justify the proposed development do not exist. As such, it would be contrary to Policy P2 of the Local Plan and Policy GB6 of the Framework.

Other Matters

16. The location of the proposed building is within the setting of the Grade II listed cottage. I am, therefore, mindful of the statutory requirement for decision makers to have special regard to the desirability of preserving the setting of a listed building². However, as the appeal does not succeed for other reasons, I have not considered this matter further.

Conclusion

17. The proposal is contrary to the development plan and the material considerations, including the Framework and the very special circumstances test therein, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

J Bell-Williamson

INSPECTOR

² Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990.